

Anil Kumar Gupta v. U.P. Power Corporation Limited And 2 Others

Allahabad High Court · Division Bench · 20 July 2021 · WRIT - C No. - 14254 of 2021 · **Writ disposed of; petitioner relegated to a Clause 6.5 representation with Clause 6.5(b)(ii) pre-deposit; no coercive action for six weeks or until that representation is decided, whichever is earlier**

HEADNOTE

Where a consumer seeks certiorari to quash two recovery notices — one against his deceased father and one against himself — for the same electricity connection, and the licensee answers that the connection has been disconnected, that no mutation application under the U.P. Electricity Supply Code, 2005 was filed after the father's death, and that an FIR was lodged for unauthorised use, the writ court will not decide those issues on merits. Clause 6.5 is an adequate alternative statutory remedy for correction of a disputed bill. The petition is disposed of with a time-bound direction to file a proper representation, for the licensee to communicate the Clause 6.5(b)(ii) pre-deposit, for deposit and a reasoned order thereafter, and with a short stay of coercive action on the recovery citations.

FACTUAL SUMMARY

Anil Kumar Gupta filed Writ-C No. 14254 of 2021 seeking certiorari to quash a recovery notice dated 25 March 2021 of Rs. 2,69,661 issued against his father Totaram and a further notice of Rs. 2,42,580 issued against the petitioner, both said to relate to the same electricity connection, and a mandamus restraining recovery of those sums. He contended that issuing recoveries against father and son for one connection was arbitrary. On instructions, counsel for the Power Corporation stated that the connection standing in the father's name had been disconnected on 25 March 2021; that the petitioner had filed no mutation application under the U.P. Electricity Supply Code, 2005 after his father's death; that the petitioner was using the connection; and that an FIR had been lodged against him and others on 27 April 2020. The licensee also submitted that a computation grievance lay under Clause 6.5. After listings on 1, 12 and 15 July 2021, a Division Bench disposed of the writ on 20 July 2021.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill — Clause 6.5 as alternate remedy to writ

HOLDING

Clause 6.5 of the U.P. Electricity Supply Code, 2005 is an adequate alternative statutory remedy for correction of a disputed electricity bill. A writ seeking to quash dual recovery notices against father and son for the same connection is disposed of without entering the merits. If the petitioner files a proper representation before respondent no. 2 within two weeks, that respondent shall within one week communicate the pre-deposit required to maintain the representation under Clause 6.5(b)(ii); the petitioner shall deposit that amount within a further two weeks; and, upon deposit, respondent no. 2 shall pass a reasoned order within one week. No coercive action shall be taken on the impugned recovery citations for six weeks or until a final decision on the representation, whichever is earlier. ¶ *order of 20.7.2021*

FLAG Source PDF concatenates four sittings: 1.7.2021 and 12.7.2021 (Manoj Misra and Dinesh Pathak, JJ.) listing as fresh after a video-conference hearing failure; 15.7.2021 (Naheed Ara Moonis and Saumitra Dayal Singh, JJ.) granting two days' instructions on how demand notices issued to father and son for the same connection number; 20.7.2021 (Naheed Ara Moonis and Ajai Tyagi, JJ.) disposing without merits. Coram is the 20.7.2021 Bench. The Court cited Clauses 6.5 and 6.5(b)(ii) only. Mutation, the 27.04.2020 FIR, and the dual-notice query were not decided. No precedent cited.

clause-6.5-alternate-remedy-to-writ The writ to quash dual recovery notices against father and son for the same connection was not decided on merits; the consumer was remitted to Clause 6.5. ¶ [order of 20.7.2021](#)

clause-6.5-statutory-remedy-disputed-bill The Court treated Clause 6.5 as the adequate alternative statutory remedy for correction of the disputed bill underlying the two recovery citations. ¶ [order of 20.7.2021](#)

bill-correction-clause-6.5 The petitioner's challenge to the two recovery amounts was left to a proper Clause 6.5 representation before respondent no. 2, not to writ correction. ¶ [order of 20.7.2021](#)

disputed-assessment-relegated-to-6.5(b)(ii) Maintenance of the Clause 6.5 representation was conditioned on respondent no. 2 communicating, and the petitioner depositing, the pre-deposit required by Clause 6.5(b)(ii). ¶ [order of 20.7.2021](#)

clause-6.5-objection-must-be-in-proper-form The consumer was directed to file a proper representation before respondent no. 2 within two weeks, after which the Clause 6.5(b)(ii) pre-deposit would be communicated. ¶ [order of 20.7.2021](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RECOVERY NOTICES COULD LAWFULLY ISSUE AGAINST BOTH THE DECEASED FATHER AND THE SON FOR THE SAME CONNECTION NUMBER

Raised by the petitioner and specifically reserved for instructions on 15.7.2021; the 20.7.2021 order did not answer it and remitted the billing dispute to Clause 6.5. ¶ [orders of 15.7.2021](#) and [20.7.2021](#)

NOT DECIDED — WHETHER THE PETITIONER'S USE OF THE DECEASED FATHER'S CONNECTION WITHOUT A MUTATION APPLICATION, AND THE FIR DATED 27.04.2020, JUSTIFIED THE DEMANDS OR DISCONNECTION

Stated on the licensee's instructions; not decided. ¶ [order of 20.7.2021](#)

NOT DECIDED — CORRECTNESS OR QUANTUM OF THE RS. 2,69,661 AND RS. 2,42,580 RECOVERIES

Left to respondent no. 2 under Clause 6.5 after the prescribed pre-deposit; the notices were not quashed.

¶ [order of 20.7.2021](#)